

Instructor: Date:

Learner: Regional Branch:

Program: Center:

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Let's Start!

Negotiating IT



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.

Participate in the improvement of IT contracts, establishing technical clauses that respond to the needs of the negotiating agents, based on current laws on contracting.

Ask your partner:

- When you get any kind of licensed software, do you read the agreement with detail? Why? Why not?
- Have you ever had any difficulty for not checking a contract?

Can Do Statements:

- I can talk about the importance of checking the contract when working with IT procurement.
- I can discuss the importance of keeping several candidates during a negotiation process.
- I can talk about the consequences of not checking a contract carefully before signing it.





Let's Explore!

A consultant* is explaining her clients some important points regarding an IT procurement contract.

* A "consultant" is a person who gives professional or expert advice.



Instructions: Read the text below.

- Consultant:** So, now let's move on to clarifying some doubts you may have regarding the IT procurement contract.
- Client:** Isn't that just another informal transaction?
- Consultant:** Not really. It is not as straightforward as buying a property or selling a business. The IT that is procured is often critical for a company's day to day operations and, as such, it deserves some management and legal attention. Some people don't even read the contract before signing it.
- Client:** I think I do that sometimes.
- Consultant:** Well, you shouldn't. By simply signing, the solution deliverables and associated timeframes may not be very clear and you might not be able to sue the supplier if the solution doesn't work or its performance isn't as good as expected.
- Client:** It is not as simple as I thought.
- Consultant:** Try to include your own terms and conditions in your RFP or, if it isn't possible, arrange an acceptable position in the supplier's contract. Also, check if you're eligible to use the Government Information Technology Contracting (GITC) framework when acquiring the IT Service.
- Client:** Wow, that's quite a lot to take into account. Now, what If I have many potential suppliers?
- Consultant:** Do not downselect before the contract is negotiated. Try not to let the suppliers know they have been selected until the terms have been agreed, and try to keep final negotiations with a least three potential suppliers. It's less practical to have just a very few suppliers. Once they know they have the job, they're usually difficult to negotiate with.
- Client:** Understood! Any further recommendation?
- Consultant:** I have to insist on checking the contract before signing it. You could end up accepting an "all care and no responsibility" kind of agreement. Make sure you're not sued for infringing a third party's intellectual property right.



Let's Practice!

Do you consider it is important to check the contract when working with IT procurement?

Instructions: Write the expressions to correctly complete the sentences. Use words from the box below.

doesn't deserve less / is not as simple as / not as straightforward as / as naive as / isn't as good as

Client: Isn't that just another informal transaction?

Consultant: Not really. It is _____ buying a property or selling a business. The IT that is procured is often critical for a company's day to day operations, and as such, it _____ management and legal attention as you think. Even most of the people don't even read the contract before signing it.

Client: I think I do that sometimes.

Consultant: Well, I used to be _____ you. By simply signing, the solution deliverables and associated timeframes may be not very clear and you might not be able to sue the supplier if the solution doesn't work or its performance _____ expected.

Client: It _____ I thought.



Let's Practice!

The Importance of Keeping Several Candidates During The Acquisition of an IT

Instructions: Circle the imperatives within the text.

Try to include your own terms and conditions in your RFP or, if it isn't possible, arrange an acceptable position in the supplier's contract. Also, check if you're eligible to use the Government Information Technology Contracting (GITC) framework when acquiring the IT Service. Do not downselect before the contract is negotiated. Try not to let the suppliers know they have been selected until the terms have been agreed, and try to keep final negotiations with a least three potential suppliers. It's less practical to have just a very few suppliers, once they know they have the job they're usually difficult to negotiate with.



Extension Activity

IP Procurement Importance

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Look for an IP Procurement example
- Underline the point you consider important and the ones you consider are difficult to understand for a customer
- After reading the example, write a text giving reasons why you consider it's important to read contract carefully.
- Share your ideas with your classmates.

Self-Assessment

Yes **No**

- | | | |
|--|-----------------------|-----------------------|
| 1. I look for an IP procurement example | ☐ | ☐ |
| 2. I underline important information | ☐ | ☐ |
| 3. I write a text explaining the IP procurement importance | ☐ | ☐ |
| 4. I share the idea with my classmates. | ☐ | ☐ |



Target Words

- **GITC Framework** (noun): (Government Information Technology and Communication Framework); the standard terms and conditions for the acquisition of products and services in the information technology.
e.g. Also, check if you're eligible to use the Government Information Technology Contracting (GITC) framework when acquiring the IT Service.
- **Down select** (verb): to reduce the number of options.
e.g. Do not down select before the contract is negotiated.
- **intellectual property rights** (noun): rights a person has for the use of his own plans, ideas, designs, or inventions without the worry of competition.
e.g. Make sure you're not sued for infringing a third party's intellectual property rights.
- **IT procurement** (noun): groups of activities and methods essential to purchase information technology.
e.g. So, now let's move on to clarifying some doubts you may have regarding the IT procurement contract.
- **RFP (abbreviation)** (request for Proposal): a document released by an organization to elicit offers from potential vendors for a desired IT solution.
e.g. Try to include your own terms and conditions in your RFP or, if it isn't possible, arrange an acceptable position in the supplier's contract.
- **Sue** (verb): to initiate or pursue legal action against another party.
e.g. Make sure you're not sued for infringing a third party's intellectual property rights.



Learning Points

Comparisons with **as...as** / **Not as... as** and Negative Comparative Forms

When we want to say that two things are or are not equal we use the structure **not + as + adjective + as**.

By using **less** and an **adjective**, we establish that the first thing being compared does not share the same characteristics as the second one.

This structure is normally used to establish a comparison between two things that share the same characteristics:

- *An IT procurement is **as** complex **as** any other contract.*

If we use this structure with a negative verb, we establish that the first thing mentioned is "less" than the second thing. The same meaning can be obtained by using less and an adjective:

- *Signing a contract for a licensed software **isn't as** simple **as** many people think.*
- *Signing a contract for a licensed software is **less** simple than many people think.*

Examples

- *It is not as straightforward as buying a property or selling a business.*
- *It is not as simple as I thought.*
- *It's less practical to have just a very few suppliers.*



Learning Points

Imperatives to Talk about Tips

Imperative sentences are used to either give commands or to give friendly informal advice.

The **imperative form** of a verb is its base form. Imperative sentences are usually short and simple, but they can also be long and complex sentences that convey a lot of information.

In **imperative sentences** the information is direct and the use of a subject is not necessary as it is implied that the subject is "you" :

- ***Try to read*** everything carefully before signing the contract.

To make a negative imperative place "do not" or "don't" before the verb:

- ***Do not sign*** without reading.

Examples

- *Try to include your own terms and conditions in your RFP or, if it isn't possible, arrange an acceptable position in the supplier's contract.*
- *Also, check if you're eligible to use the Government Information Technology Contracting (GITC) framework when acquiring the IT Service.*
- *Do not down select before the contract is negotiated.*
- *Try not to let the suppliers know they have been selected until the terms have been agreed, and try to keep final negotiations with a least three potential suppliers.*